

24STCV28113 24STCV28113

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Department: 506
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Case Number: 24STCV28113 Hearing Date: August 6, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

WILLIAM JACKSON,

Plaintiff,

vs.

CUSTODY ASSISTANT ALVAREZ, et al.,

Defendants.

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CASE NO.: 24STCV28113

[TENTATIVE] ORDER SUSTAINING DEMURRER

Dept. 506

8:30 a.m.

August 6, 2026

On September 23, 2025, Plaintiff

William Leo Jackson filed a first amended complaint (“FAC”) against Defendants Custody Assistant Alvarez, Los Angeles County Men’s Central Jail, and Robert Luna in his Capacity of Sheriff of Los Angeles County Sheriffs Department. The FAC alleges (1) same-sex harassment; (2) negligent supervision; (3) retaliation; (4) ADA discrimination; and (5) damages.

On

October 23, 2025, Defendants filed a demurrer.

DISCUSSION

A

demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.) A special demurrer for uncertainty under Code of Civil Procedure section 430.10, subdivision (f) is disfavored and will only be sustained where the pleading is so bad that defendant or plaintiff cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or

her. (Khoury v. Maly's of Calif., Inc.
(1993) 14 Cal.App.4th 612, 616.)

For

the first, second, third, and fifth causes of action, Plaintiff does not allege compliance with the Government Claims Act.

(Demurrer at pp. 3-4.) Under the Government

Claims Act, no person may sue a public entity or public employee for money or damages

unless a timely written claim has been presented to and denied by the public entity. (County of Los Angeles v. Superior Court (2005) 127 Cal.App.4th 1263, 1267.) Absent

an applicable exception, failure to timely present a claim for money or damages

to a public entity bars a plaintiff from filing suit against that entity bars a

plaintiff from filing a lawsuit against that entity. (State of California v. Superior Court (2004) 32 Cal.4th 1234, 1239.)

Even

if Plaintiff had submitted a timely government claim, he does not plead statutory

liability with particularity for the second and fifth causes of action. (Demurrer at pp. 4-6.) A public entity is not liable for an injury arising

from an act or omission of the entity, a public employee, or any other person except

as provided by statute. (Gov. Code, § 815.) "[E]very fact essential to the existence of statutory

liability must be pleaded with particularity, including the existence of a statutory

duty." (Searcy v. Hemet Unified School

Dist. (1986) 177 Cal.App.3d 792, 802.)

For

the fourth cause of action, Plaintiff does not allege that he was denied "the benefits

of receiving an ADA incontinent shower" on the basis of his disability or for any

other protected reason. (Demurrer at p. 6.)

Finally,

the fifth cause of action for "damages" does not identify a legal basis or state

a clear cause of action. Instead, it "includes

scattershot references to a variety of legal concepts and terms, such as negligence,

breach of fiduciary duty, intentional infliction of emotional distress, and discriminatory

actions (FAC ¶¶ 38-40) without setting forth the elements establishing any specific

cause of action." (Demurrer at p. 7.)

CONCLUSION

The

demurrer is SUSTAINED.

Plaintiff's

opposition does not show how he can amend the FAC to remedy the deficiencies. Accordingly, no leave to amend is granted.

Defendants

Custody Assistant Alvarez, Los Angeles County Men's Central Jail, and Robert Luna in his Capacity of Sheriff of Los Angeles County Sheriffs Department are DISMISSED WITH PREJUDICE. (See Metabyte, Inc. v. Technicolor S.A. (2023) 94 Cal.App.5th 265, 275 ("a dismissal without prejudice is not available if the demurrer is sustained without leave to amend".).)

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 6th day of August 2026

Hon. Thomas D. Long

Judge of the Superior

Court